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Case Number: 25PSCV03747 Hearing Date: August 3, 2026 Dept: O

Tentative Ruling

DEFENDANTS

FERHAT HANACI'S AND FERHAT CONSTRUCTION INC.'S NOTICE OF MOTION TO STRIKE PORTIONS OF COMPLAINT AND DEMURRER AND MOTION TO STRIKE is SUSTAINED with 30 days leave to amend; the MTS is moot in part (re: punitive damages)/denied in part (re: attorney fees and jury trial).

Background

This

case arises from a commercial lease agreement. Plaintiffs SOPHIA L. ARMENTA, DINA NIMRI, and MUNA HAWATMEH allege the following against Defendants FERHAT HANACI ("Hanaci"), JOHN L. FAIRE ("Faire"), COLDWELL BANKER RESIDENTIAL BROKERAGE COMPANY ("Coldwell"), FERHAT CONSTRUCTION, INC. (the "Company"): On or about April 7, 2025, Plaintiffs Sophia L. Armenta and Dina Nimri (Contracting Plaintiffs) entered into a Commercial Lease Agreement with Defendant Hanaci for a property that would be used as a "Juice Bar & related services," and it was represented as such by Faire. (¶¶4, 5.) After signing the lease (which included three months of free rent), Contracting Plaintiffs discovered that the Property was not suitable for a juice bar without significant modifications and did not have proper health department approvals. (¶12.) Then in June 2025, at a meeting at Hanaci's residence, Hanaci "forcefully grabbed Hawatmeh by her arm with his hand and would not let her go while he screamed at her that she was not a woman." (¶¶17-19.) Contracting Plaintiffs allege that they have suffered damages including the loss of their security deposit, the \$3,500 paid for construction plans, rent payments made during the lease period, lost business opportunity and profits, and costs associated with moving and finding an

alternative business location; Hawatmeh has suffered emotional distress as have the others by “witnessing” the assault/battery on Hawatmeh. (¶¶24-26.)

On

October 16, 2025, Plaintiffs filed suit asserting the following causes of action (COAs):

1. FRAUD IN THE INDUCEMENT IN VIOLATION OF CAL CIV CODE § 1572;

2. NEGLIGENT MISREPRESENTATION IN VIOLATION OF CAL CIV CODE § 1710;

3. NEGLIGENCE IN VIOLATION OF CAL CIV CODE § 1714;

4. NEGLIGENT SUPERVISION OF REAL ESTATE SALESPERSON IN VIOLATION OF CAL CIV CODE § 2338;

5. ASSAULT IN VIOLATION OF CAL PEN CODE § 240;

6. BATTERY IN VIOLATION OF CAL CIV CODE § 1708;

7. BREACH OF CONTRACT;

8. UNFAIR BUSINESS PRACTICES IN VIOLATION OF CAL BUS & PROF CODE § 17200; and

9. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

On

November 17, 2026, the court denied Plaintiff's notice of related case seeking to relate the small claims case filed by Hanaci against Plaintiffs (25WCSC01390).

On

January 13, 2026, Defendants Coldwell and Faire filed a 'DECLARATION OF DEMURRING OR MOVING PARTY IN SUPPORT OF AUTOMATIC EXTENSION' indicating that “[s]ince December 16, 2025” Counsel has been attempting to meet and confer with Plaintiffs' counsel.

On April

23, 2026, the court sustained the demurrer and granted the motion to strike filed by COLDWELL BANKER, RESIDENTIAL BROKERAGE COMPANY AND JOHN L. FAIRE, both without leave to amend.

On June 1,
2026, a notice of appeal was filed.

On June 17,
2026, the instant demurrer was filed with a motion strike.

On July 21,
2026, an opposition was filed.

On July 24,
2026, a reply was filed.

Discussion

Moving

Defendants demur to the 1st, 2nd, 3rd, 7th, and 8th COAs on various grounds (e.g., the Release and other Lease provisions do not support the allegations by Contracting Plaintiffs that Moving Parties breached the Lease). For purposes of this demurrer and MTS, the court will focus on the issue that more readily resolves the dispute: whether the complaint fails for uncertainty. And it does. As argued by moving Defendants and not otherwise addressed in opposition, the complaint lumps allegations against the various defendants making no distinctions or elaborations as to what any defendant said. (See e.g., Demurrer p. 8

["There are four defendants named in the Complaint and Plaintiffs fail to specifically identify the specific "who, what, when, where, how" required for a fraud allegation per Robinson Helicopter. Plaintiffs lump Moving Parties into the other defendants and think that such allegation is enough. It is not and this Court should sustain this Demurrer."].)

As

for leave to amend, the opposition merely recites elements and allegations such that Plaintiffs do not meet their burden to demonstrate how the complaint can be properly amended. Plus, as noted in the demurrer and not otherwise addressed in opposition, it appears Plaintiff's counsel has (again) refused to meet and

confer. The court emphasizes that Plaintiffs' counsel must meaningfully meet and confer with Defense counsel should moving Defendants file a demurrer to an amended complaint.

As

for the motion to strike, Defendants seek to strike the award of attorney fees, punitive damages, and the jury trial request.

In

opposition, Plaintiffs conclusively argue that the lease and applicable statutes allow for attorney fees (though none are delineated) and that Defendants' fraudulent conduct and intentional misrepresentations justify punitive damages.

As

for punitive damages, the MTS is moot insofar as the complaint is to be amended. As for attorney fees, the reply seems to concede that attorney fees are permissible as they are "limited to the contract" and section 31 of the lease provides that a prevailing party "shall be entitled to reasonable attorneys' fees." Accordingly, moving Defendants' argument that attorney fees are not permissible is unclear such that said request is denied.

As for the waiver of jury trial, Plaintiffs cite to Grafton

Partners v. Superior Court (2005) 36 Cal.4th 944 to support their proposition that any predispute agreement that any lawsuit between parties would be adjudicated in a court trial, and not by jury trial, was unenforceable, that is the correct holding of the case and Defendants do not address the case at all. Thus, the request to strike the jury trial is denied.

Conclusion

Based on the foregoing, the demurrer is sustained with 30 days leave to amend and the MTS is denied in part (re: attorney fees and jury trial) and moot in part (re: punitive damages).